



THE POLICE COMMISSIONER
CITY OF NEW YORK

**MEMORANDUM IN SUPPORT OF NYPD'S DEVIATION FROM
THE DISCIPLINARY SYSTEM PENALTY GUIDELINES**

Re: Disciplinary Case No. 2023-29417 (PODS Case No. C-031435) regarding
Detective Marc Whirl, Tax No. 937726

Date: March 19, 2026

This disciplinary matter was investigated by the Civilian Complaint Review Board ("CCRB") which involved allegations that Detective Whirl was discourteous and used offensive language towards an individual. CCRB has determined that a downward deviation from the Disciplinary System Penalty Guidelines is warranted.

I concur with the downward deviation for the reasons articulated by CCRB in the attached correspondence.

Therefore, the Charges and Specifications in this matter will be dismissed and Detective Whirl will receive Training, as negotiated by CCRB.


Jessica S. Tisch
Police Commissioner



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
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Dr. MOHAMMAD KHALID
INTERIM CHAIR

July 2, 2025

The Honorable Jessica Tisch
Police Commissioner
New York City Police
Department One Police Plaza
New York, NY 10038

Re: CCRB v. DT Marc Whirl (CCRB #202405962, Tax #937726, DADS #2023-29417)

Commissioner Tisch:

I write to you regarding a deviation from the NYPD's Disciplinary Matrix for the plea in the case referenced above.

The CCRB offered DT Whirl a disposition of formalized training in this matter due to the following mitigating factors:

1. DT Whirl agreed to take responsibility for his misconduct;
2. While serving on the police force for seventeen years, at the 75th Precinct, DT Whirl received recognition for Excellent Police Duty 78 times, Meritorious Police Duty 30 times, and Commendation once;
3. DT Whirl's interaction with the complainant was brief and had limited impact on the civilian; and
4. DT Whirl has not been accused of misconduct since this complaint.

Respectfully submitted,
Andre D. Applewhite
Andre Applewhite
Chief Prosecutor
Civilian Complaint Review Board